



Coles - supermarket site in Kirkwood (QLD)

MN-05046

Phase 1 Determination

Acquisition may be put into effect

9 September 2026

1. Determination and statement of reasons

Notified acquisition	Coles Supermarkets Australia Pty Ltd, a subsidiary of Coles Group Limited (Coles), proposes to acquire a leasehold interest for a Coles supermarket within a new neighbourhood centre at Lot 2 Kirkwood Road, Kirkwood QLD 4680 (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Coles, is an Australian public company (ASX: COL) that primarily operates: - supermarkets nationwide through its subsidiary, Coles Supermarkets Australia Pty Ltd; and - retail liquor stores nationwide, trading under the Liquorland, Liquorland Warehouse and Liquorland Cellars brands. The lessor, Kirkwood LFR Development Pty Ltd (Lessor) is an Australian private company which is a joint venture between developer Cadre Pty Ltd (Cadre) and financier Argus Property Partners Pty Ltd (Argus). Cadre is an Australian private diversified property development and investment company specialising in large-format retail, residential, commercial, industrial and mixed-use projects. Argus is an Australian private property fund manager and investment house. The Target Site is located approximately 5 km south of the Gladstone CBD.
Overlap and relationship between the parties	The leasehold interest is an input to Coles' existing supermarket retailing operations, which would facilitate Coles establishing the new supermarket.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, other information provided by the parties and publicly available sources. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings.

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	• The proposed Coles supermarket would face competition from multiple alternative suppliers in the surrounding area. • The aggregation arising from the Acquisition is not sufficient to meaningfully change competition in the relevant local market. • The Acquisition does not involve Coles acquiring a competitor.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**